

22STCV21262 22STCV21262

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CA%2C09%2F04%2F2026

Source SHA-256: efc5cf396a7e3f688788a04b831e5ece15bfd5106fe6c516da61204f3ed6942e

Case Number: 22STCV21262 Hearing Date: September 4, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE ORDER

SEPTEMBER 4, 2026

MOTION FOR PROTECTIVE ORDER

Los

Angeles Superior Court Case # 22STCV21262

MP: Defendant City of La Canada Flintridge

RP: Plaintiffs Wayneider Singh Anand, and as
successor in interest to the Estate of Dolly Kaur Suri Anand; M.S.A., a minor
by and through her guardian ad litem Wayneider Singh Anand; R.S.A, a minor by
and through his guardian ad litem Wayneider Singh Anand; and S.S.A, a minor by
and through his guardian ad litem Wayneider Singh Anand

NOTICE:

The Court is not requesting oral argument on this
matter. Unless the Court directs argument in the Tentative Ruling, no
argument is required and any party seeking argument should notify all other

parties and the court before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at BurDeptA@LACourt.org or by telephone at (818) 260-8412.

ALLEGATIONS:

A. Operative Complaint

Wayneider Singh Anand, and as successor in interest to the Estate of Dolly Kaur Suri Anand and minors M.S.A., R.S.A., and S.S.A. ("Plaintiffs") are Dolly Kaur Suri Anand's ("Decedent") spouse and children. On December 4, 2021 at approximately 5:00 p.m., Decedent was walking in a crosswalk at the Foothill Boulevard and Union Street intersection in Defendant City of La Canada Flintridge ("City"). While crossing a vehicle driven by Defendant Emma Amosh Mirzaian ("Mirzaian") and owned by Edwin Baltazar ("Baltazar") struck Decedent. Plaintiffs assert that City knew of crosswalk safety deficiencies but failed to correct them.

The Second Amended Complaint ("SAC"), filed August 16, 2023, alleges: (1) Dangerous Condition of Public Property (Gov. Code, §§ 830, 835); (2) Tortious Acts of Employees (Gov. Code, §§ 815.2, 815.4, 840.2, 840.4); (3) Wrongful Death; and (4) Survivorship.

B. Cross-Complaint

On November 2, 2022, City filed a Cross-Complaint against Emma Amosh Mirzaian and Edwin Baltazar for: (1) Indemnification; (2) Apportionment of Fault; and (3) Contribution.

MOTION ON CALENDAR:

On August 14, 2026, City filed a Motion for Protective Order. On August 26, 2026, Plaintiffs filed an opposition. On August 28, 2026, City filed a reply.

LEGAL STANDARD:

C.C.P. § 2017.020(a) states:

(a) The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(C.C.P. § 2017.020(a).)

C.C.P. § 2025.420 states in relevant part:

(a) Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1) That the deposition not be taken at all.

(C.C.P. § 2025.420(a)-(b)(1).)

ANALYSIS:

City moves for a protective order regarding Plaintiff's Request for Production, Set 8 ("RPD-8") and the deposition of four former employees.

A. Depositions

City moves

for a protective order regarding the depositions of: (1) Erik Zandvliet (City Traffic Engineer from 2004-2014); (2) Steve Libring (City Traffic Engineer from November of 2014 to 2016); (3) Edward Hitti (Director of Public Works from October 2007 to October of 2017); and (4) Terry Walker (who has held a variety of volunteer positions at the city, until 2015 when she was elected to the La Canada Flintridge City Council. Ms. Walker's last term on the Council was as Mayor through 2024). (See Notice of Motion at p.2.) Though there seems to have been some delays between Plaintiffs serving the subpoenas on the former employees and serving copies of the subpoenas on defense counsel, City represented to Plaintiffs' counsel that defense counsel would be representing the four former employees in the event the depositions were forced to go forward. (Ferrante-Alan Decl., ¶13.)

City argues that Plaintiffs have already conducted six depositions, including: (1) City Clerk Tania Garcia; (2) Director of Administrative Services, Arabo Parseghian; (3) Director of Public Works, Patrick DeChillis; (4) City Civil Engineer Maged El-Rabaa; (5) City Traffic Engineer Farhad Iranitalab; and (6) most recently, City employee Nasser Shoushtarian (City's PMK of a Commission comprised of private volunteer citizens), which amounted to nearly 32 hours of deposition time. (Ferrante-Alan Decl., ¶21.)

City provides the declarations of the potential deponents:

.

Terry Walker states that since approximately 2008, she held various volunteer positions with the City, including Councilwoman from 2015-2024, and City Mayor in 2018 and 2024. (Walker Decl., ¶2.) On August 3, 2026, she received a deposition subpoena for personal appearance. (Id., ¶3.) She states: "The extent of my knowledge regarding this case is limited to the fact that I was present at a city council meeting on April 5, 2022, during which the Anand's attorney requested to speak during open session to ask City Council to accept their submitted Government Tort Claim. I had no further involvement in any aspect of the case." (Id., ¶4.) Ms. Walker further states that she does "not have any recollection of speaking to any City staff regarding this case or the specifics of the subject crosswalk's configuration or signage." (Id., ¶5.)

.

Edward

Hitti states that he worked for the City as the Director of Public Works from approximately 2007-2017. (Hitti Decl., ¶2.) He states that he has “no direct personal

knowledge or factual information pertaining to any issues, material or otherwise, in this

action.” (Id., ¶3.) On July 27, 2026, he received the deposition

subpoena for personal appearance with no proof of service. (Id., ¶4.) Mr. Hitti states that he has “never seen or

heard about the Anands' tort claim until [he] was served with a subpoena” and

that he has “no knowledge regarding design plans and/or modifications that were

made or implemented after [his] departure from the City.” (Id., ¶¶5-6.)

.

Steve

Libring states that he worked for the City as a Traffic Engineer from approximately

2014-2016. (Libring Decl., ¶2.) He states he has “no direct personal

knowledge or factual information pertaining to any issues, material or

otherwise, in this action.” (Id.,

¶3.) On July 24, 2026, received the

deposition subpoena for personal appearance with a blank proof of service. (Id., ¶4.) He states that he has “never seen or heard

about the Anands' tort claim until [he] was served with a subpoena” and that he

has “no knowledge regarding design plans and/or modifications that were made or

implemented after [his] departure from the City.” (Id., ¶¶5-6.)

.

Erik

Zandvliet states that he worked for the City as a Traffic Engineer from approximately

2005-2014. (Zandvliet Decl., ¶2.) He states that he has “no direct personal knowledge or factual

information pertaining to any issues, material or otherwise, in this action.” (Id., ¶3.) On July 25, 2026, he received a deposition

subpoena for personal appearance with no proof of service attached. (Id.,

¶4.) Mr. Zandvliet states that he has “never

seen or heard about the Anands' tort claim until [he] was served with a

subpoena” and that he has “no knowledge regarding design plans and/or

modifications that were made and/or implemented after [his] departure from the

City.” (Id., ¶¶5-6.)

In opposition, Plaintiffs argue

that City previously acknowledged that it had no “current” City employees with

knowledge, but the 2011 and 2012 Public Works and Traffic Commission and City

Council Meeting minutes show there are individuals with actual knowledge of the Foothill/Union crosswalk enhancements—such as Edward Hitti, Erik Zandvliet, and Terry Walker. (Whitehill Decl., Ex. 6 [April 28, 2011 Public Works and Traffic Commission Minutes at p.1].) At the April 28, 2011 Public Works and Traffic Commission meeting, Chair Terry Walker opened the meeting to propose projects, wherein she requested consideration of crosswalk enhancements at Foothill/Union, and Edward Hitti responded that the suggestions would be taken to the City Counsel. (Id. at pp.3-4.) At the June 30, 2011 City Council meeting, Edward Hitti was present and the minutes reflected that the City Counsel concurred that the Foothill/Union crosswalk improvements project could wait another year. (Whitehill Decl., Ex. 7 [June 30, 2011 City of La Canada Flintridge City Council Minutes at pp.1, 5].) By April 10, 2016, Steve Libring replaced Erik Zandvliet as City's Traffic Engineer and Steve Libring represented that part of the Foothill/Union crosswalk project had been completed but the City was retaining some budget as a placeholder in case it decided to install flashers and in-pavement lighting. (Whitehill Decl., Ex. 8 [April 20, 2016 Public Works and Traffic Commission Minutes at pp.1-2].)

The Council Consideration Item FY 2011-12 Budget is regarding the Union/Foothill crosswalk enhancement project. (Whitehill Decl., Ex. 3.) At his deposition, Nasser Shoushtarian was asked whether Edward Hitti would have been responsible for authoring documents in 2011/2012 for the Council Consideration Item, to which he responded that because Edward Hitti was the Public Works director, he should know about all the authorizations. (Whitehill Decl., Ex. 5 [Shoushtarian Depo. at pp.57-58].) Mr. Shoushtarian also testified that the Council Consideration Item would go through the traffic engineer for traffic-related projects, authorized by the city engineer, and that Erik Zandvliet was the traffic and city traffic engineer for that meeting. (Shoushtarian Depo. at pp.59, 74.)

In reply, City argues that the minutes are self-explanatory and these documents provide their own answers. (Reply at p.4.) However, based on the evidence currently before the Court, it appears that these four individuals may have some information regarding the Foothill/Union crosswalk enhancements. While Terry Walker states that she attended an April 5, 2022 city council meeting where Plaintiffs' government tort claim was raised, her declaration does not address the April 28, 2011 Public Works and Traffic Commission meeting where she requested consideration of the crosswalk enhancements. At this point, the Court

cannot ascertain under what means Terry Walker proposed the project—from her own experience, as a spokesperson from a checklist of meeting items to address, etc. Additionally, Edward Hitti, Steve Libring, and Erik Zandvliet state that they did not hear of Plaintiffs' tort claim until receiving the deposition subpoenas and that they have no knowledge of the plans/modification made or implemented after their departure from the City. However, they fail to address the meetings they attended, such as Edward Hitti's attendance in April 28, 2011 and June 30, 2011, and Steve Libring's attendance on April 10, 2026. As testified by Nasser Shoushtarian, the director and City engineer would have to authorize the projects, which included Edward Hitti (director), Erik Zandvliet (City engineer), and Steve Libring (replacement City engineer after Erik Zandvliet).

While City claims that the burden placed on City is incommensurate with the result, and it may be that these four proposed deponents will not have any further information than what was stated in the meeting minutes but, until such depositions occur, the Court lacks information whether this is in fact the case.

This conclusion is based on their declarations not addressing any prior meetings they attended or their knowledge on the crosswalk project at the time they were employed with the City (as opposed to modification made or implemented after their departure from the City).

Thus, the motion for protective order of the four depositions is denied.

B. RPD Set 8

On June

16, 2026, Plaintiffs propounded RPD, Set 7 (Nos. 124-134) on City. On July 14, 2026, City provided verified responses. (Mot., Ex. X.) On July 27, 2026, Plaintiffs propounded RPD-8 (Nos. 135-156) on City. (Id., Ex. Y.) RPD-8 seeks:

.

RPD

Nos. 136-143 seek

any and all documents evidencing all agenda and minutes from all Public Works and Traffic Commission meetings held in 2014-2021, respectively.

.

RPD

Nos. 144-146 seek

any and all documents evidencing all agenda and minutes from all City Council meetings held in 2013-2014. (The Court notes that RPD Nos. 145 and 146 are identical regarding 2014.)

.

RPD

No. 147 seeks any

and all documents concerning, referring, or mentioning the “Foothill/Union crosswalk project” as referenced in the April 20, 2016 Public Works and Traffic Commission minutes.

.

RPD

No. 148 seeks any

and all documents concerning, referring, or mentioning that Farhad Iranitalib's memo created on or about April 17, 2017 was shared with the City Council.

.

RPD

Nos. 149-154 seek

any and all documents evidencing the City of La Cañada Flintridge's Capital Improvements Project List for 2016-2021, respectively.

.

RPD

No. 155 seeks any

and all documents concerning, referring, or mentioning the \$20,000 request to the City Council in 2015 to install rectangular Rapid Flashing Beacons at five existing crosswalks.

(Mot., Ex.

Y.)

City

argues that RPD-8 is oppressive and unduly burdensome because it has already produced more than 2,500 pages of documents in response to 134 RPDs, responded to 90 RFAs, and 225 SROGs.

(Ferrante-Alan Decl., ¶22.) City argues that RPD-8 seeks thousands of pages of documents related to City Council meetings, Public Works and Traffic Commission meeting minutes, and documents related to the City's capital improvement projects ("CIP") over several years without identifying specific dates, a specific project, or anything concrete that is relevant or related to the issues in dispute. City contends that identifying and compiling these documents would require hundreds of hours of labor prior to the October 5, 2026 jury trial date and that the documents have no bearing on this case. (Mot. at p.18.)

A review of RPD-8 shows that it is not limited in time or scope to documents relevant to this action. For example, RPD Nos. 136-146 and 149-154 seek all agenda/minutes from all Public Works and Traffic Commission meetings from 2014-2021, City Council meetings from 2013-2014, and City's Capital Improvement Project Lists from 2016 to 2021. There is no limitation as to subject matter, including the subject Foothill/Union crosswalk or its design/construction/updates thereto to show how these documents would be relevant to this action. The motion for protective order is granted as to RPD Nos. 136-146 and 149-154.

RPD No. 147 is narrowly tailored in part such that it seeks documents specific to the Foothill/Union crosswalk project, which is where the subject incident occurred. The request also is limited to a specific date; however, the use of the words "all documents concerning" is vague and ambiguous. As such, the motion for protective order is denied as to RPD No. 147 for documents "referring" or "mentioning". The motion for protective order is denied as to RPD No. 147 to the extent City has not produced all documents.

RPD No. 148 is partially limited in scope as it seeks documents regarding Mr. Iranitalib's April 17, 2017 memo to the extent it was shared with the City Council. This is a narrowly defined subset of documents, if any such documents exist; however, the use of the words "all documents concerning" is vague and ambiguous. As such, the motion for protective order is denied as to RPD No. 148 for documents "referring" or "mentioning" the Iranitalib memo.

RPD No. 155 is also partially limited in scope with respect to subject matter except

for the use of “all documents concerning the \$20,000 request. As for documents “referring” or “mentioning” the \$20,000 request, the Court denies the motion for protective order as to RPD No. 155.

City’s motion for protective order is granted as to RPD Nos. 136-146 and 149-154, and granted in part / denied in part as to RPD Nos. 147, 148, and 155.

C.
Sanctions

City did not request sanctions in connection with the motion.

In opposition, Plaintiffs seek \$5,600 in sanctions (= [12 hours on the motion] + [2 anticipated hours for the reply and hearing] at \$400/hour). (Whitehill Decl., ¶14.)

As each party was partially meritorious in their arguments, the Court declines to award sanctions.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Defendant City of La Canada Flintridge’s Motion for Protective Order came on regularly for hearing on September 4, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION FOR PROTECTIVE ORDER IS DENIED AS TO THE DEPOSITIONS OF ERIK ZANDVLIET, STEVE LIBRING, EDWARD HITTI, AND TERRY WALKER.

THE MOTION FOR PROTECTIVE ORDER IS GRANTED IN PART AS TO RPD, SET
EIGHT, NOS. 136-146 AND 149-154, AND GRANTED
IN PART AND DENIED IN PART AS TO RPD NOS. 147, 148, AND 155.

NO SANCTIONS
SHALL BE AWARDED.

DEFENDANT CITY TO
PROVIDE NOTICE.

IT IS SO ORDERED.